

However expansive the prohibition against bills of attainder, it surely was not intended to serve as a variant of the equal protection doctrine,³³ invalidating every Act of Congress or the States that legislatively burdens some persons or groups but not all other plausible individuals.³⁴ In short, while the Bill of Attainder Clause serves as an important "bulwark against tyranny," *United States v. Brown*, 381 U. S., at 443, it does not do so by limiting Congress to the choice of legislating for the universe, or legislating only benefits, or not legislating at all.

Thus, in the present case, the Act's specificity—the fact that

³³ We observe that appellant originally argued that "for similar reasons" the Act violates both the Bill of Attainder Clause and equal protection of the laws. Jurisdictional Statement 27-28. He has since abandoned reliance upon the equal protection argument, apparently recognizing that mere underinclusiveness is not fatal to the validity of a law under the equal protection component of the Fifth Amendment, *New Orleans v. Dukes*, 427 U. S. 297 (1976); *Katzenbach v. Morgan*, 384 U. S. 641, 657 (1966), even if the law disadvantages an individual or identifiable members of a group, see, e. g., *Williamson v. Lee Optical Co.*, 348 U. S. 483 (1955) (opticians); *Daniel v. Family Ins. Co.*, 336 U. S. 220 (1949) (insurance agents). "For similar reasons" the mere specificity of a law does not call into play the Bill of Attainder Clause. Cf. Comment, The Supreme Court's Bill of Attainder Doctrine: A Need for Clarification, 54 Calif. L. Rev. 212, 234-236 (1966); but see Comment, The Bounds of Legislative Specification: A Suggested Approach to the Bill of Attainder Clause, 72 Yale L. J. 330 (1962).

³⁴ *Brown* recognized this by making clear that conflict-of-interest laws, which inevitably prohibit conduct on the part of designated individuals or classes of individuals, do not contravene the bill of attainder guarantee. *Brown* specifically noted the validity of § 32 of the Banking Act of 1933, 12 U. S. C. § 78, which disqualified identifiable members of a group—officers and employees of underwriting organizations—from serving as officers of Federal Reserve banks, 381 U. S., at 453. Other valid federal conflict-of-interest statutes which also single out identifiable members of groups to bear burdens or disqualifications are collected, *id.*, at 467-468, n. 2 (WHITE, J., dissenting). See also *Regional Rail Reorganization Act Cases*, 419 U. S. 102 (1974) (upholding transfer of rail properties of eight railroad companies to Government-organized corporation).